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Case Number: 23STCV15318 Hearing Date: September 8, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department 508

YAQUELIN

MARTINEZ DE MANZANARES, individually, and on behalf of all others similarly situated,

Plaintiff,

vs.

BRENTWOOD

SCHOOL,

Defendant.

Case No.:

23STCV15318

Hearing Date:

September 8, 2026

Hearing Time:

8:30 a.m.

[TENTATIVE] ORDER RE:

PLAINTIFF'S MOTION FOR PRELIMINARY APPROVAL
OF CLASS AND REPRESENTATIVE ACTION SETTLEMENT

Background

On

June 30, 2023, Plaintiff Yaquelin Martinez

De Manzanares ("Plaintiff"), individually and on behalf of all others similarly situated, filed this action against Defendant Brentwood School ("Defendant"). On May 5, 2026, Plaintiff filed the Second Amended Class Action and PAGA Representative Action Complaint, alleging nine causes of action for (1) failure to pay minimum wages, (2) failure to pay overtime compensation, (3) failure to provide meal periods, (4) failure to authorize and permit rest breaks, (5) failure to indemnify necessary business expenses, (6) failure to timely pay final wages at termination, (7) failure to provide accurate itemized wage statements, (8) unfair business practices, and (9) civil penalties under PAGA.

Plaintiff

moves for a preliminary approval of the Joint Stipulation of Class and Representative Action Settlement Agreement. "Specifically, Plaintiff moves the Court for an order:

1. Granting preliminary approval of the Joint Stipulation of Class and Representative Action Settlement Agreement;
2. Certifying a Class, for settlement purposes only;
3. Approving the Class Notice and plan for its distribution;
4. Appointing Plaintiff as the Class Representative, for settlement purposes only;
5. Appointing Moon Law Group, PC as

Class Counsel, for settlement purposes only;

6. Appointing Phoenix Class Action

Administration Solutions as the Administrator; and

7. Scheduling a Final Approval Hearing

no earlier than 120 days from the date of preliminary approval."

(Notice

of Mot., i:7-16.) No opposition was filed.

Legal

Standard

Pursuant

to Labor Code section 2699, subdivision (s)(2) of

the Private Attorneys General Act ("PAGA"), "[t]he superior court shall review

and approve any settlement of any civil action filed pursuant to this part. The

proposed settlement shall be submitted to the agency at the same time that it

is submitted to the court." This requirement serves to "ensur[e] that any

negotiated resolution is fair to those affected." (Williams

v. Superior Court (2017) 3 Cal.5th

531, 549.)

Regarding

preliminary approval, "[a]ny party to a settlement agreement may serve and file

a written notice of motion for preliminary approval of the settlement. The

settlement agreement and proposed notice to class members must be filed with

the motion, and the proposed order must be lodged with the motion." (Cal. Rules of Court, rule 3.769(c).)

The

Court notes that, although there is no statutory or common law standard for

approval of a PAGA settlement, the standard used

for approval of class action settlements is instructive. "[A] presumption of fairness exists

where: (1) the settlement is reached through arm's-length bargaining; (2)

investigation and discovery are sufficient to allow counsel and the court to

act intelligently; (3) counsel is experienced in similar litigation; and (4)

the percentage of objectors is small." (Dunk

v. Ford Motor Co. (1996) 48

Cal.App.4th 1794, 1802.) The last factor, small percentage of

objectors, is inapplicable to PAGA claims. (See *Arias v. Superior Court* (2009) 46 Cal.4th 969, 984-985 [rejecting the argument that representative actions under PAGA violate the due process rights of “nonparty aggrieved employees who are not given notice of, and an opportunity to be heard”].) Additional factors to consider include the strength of a plaintiff’s case, the risk, expense, complexity and likely duration of further litigation, the amount offered in settlement, the extent of discovery completed, and the experience and views of counsel. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 128.)

Discussion

The parties agreed to a gross settlement amount of \$750,000.00, subject to a potential increase under an Escalator Clause. (Moon Decl., Ex. 1, Settlement Agreement, § 3.0.)

A. PAGA

Settlement Agreement

Plaintiff’s counsel, Kane Moon (“Moon”), attests that “[w]ith regards to the PAGA claims, the Settlement is a fair and reasonable resolution that satisfies PAGA’s dual statutory purposes of deterrence and punishment, on the one hand, and providing Aggrieved Employees with genuine and meaningful relief, on the other.” (Moon Decl., ¶ 41.) As required by PAGA, before filing suit, “on June 24, 2023, Plaintiff gave written notice to the California Labor and Workforce Development Agency (the ‘LWDA’) of the alleged Labor Code violations, with certified mail service on Defendant, and paid the required filing fee.” (Moon Decl., ¶ 6; Ex. 2.)

Of the gross settlement amount, counsel will receive a payment, not to exceed one-third of the gross settlement amount or \$250,000, whichever is greater, for their attorney fees, and no more than \$35,000 will be paid for class counsel expenses. (Ex. 1, Settlement Agreement, § 3.1.2.) Regarding attorney fees, Moon explains that his “current billing rate is \$950.00 per hour, which is my usual hourly rate in wage-and-hour litigations. A \$950.00 per hour rate is reasonable considering my years of experience practicing in the highly specialized area of employment and labor law and my Laffey Matrix rate... Based on my 19+ years of experience out of law school, my Laffey Matrix rate with a 2.53% adjustment is \$1,044.78 per hour (\$1,019 Laffey Matrix rate + (2.53% x \$1,019)). Accordingly, my current billing rate of \$950.00 per hour is reasonable.” (Moon Decl., ¶ 54; Ex. 6.) Moon also attests to Allen Feghali, “a

partner at Moon Law Group, PC,” whose “current billing rate is \$900.00 per hour, which is his usual hourly rate in wage and hour litigations. Based on Mr. Feghali’s 11+ years of experience out of law school, his Laffey Matrix rate with a 2.53% adjustment is \$1,044.78 per hour (\$1,019 Laffey Matrix rate + (2.53% x \$1,019)). (See Ex. 6.) As compared to the Laffey Matrix rate and when considering his experience, Mr. Feghali’s billing rate of \$900.00 per hour is reasonable.” (Moon Decl., ¶¶ 56, 58.) Moon attests to Jacquelyne VanEmmerik, whose “current billing rate is \$700.00 per hour, which is her usual rate in wage-and-hour litigations. Based on Ms. VanEmmerik’s nearly 5 years of experience out of law school, her Laffey Matrix rate with a 2.53% adjustment is \$640.81 per hour (\$625 Laffey Matrix rate + (2.53% x \$625)). (See Ex. 6.) As compared to the Laffey Matrix rate and when considering her significant wage-and-hour class action experience, Ms. VanEmmerik’s billing rate of \$700 per hour is reasonable.” (Moon Decl., ¶ 64.) Lastly, Moon attests to Nichelle Christopherson, whose “billing rate is \$500.00 per hour, which is her usual hourly rate in wage and hour litigations. Based on Ms. Christopher’s 2+ years of experience out of law school, her Laffey Matrix rate with a 2.53% adjustment is \$520.85 per hour (\$508 Laffey Matrix rate + (2.53% x \$508)). (See Ex. 6.) As compared to the Laffey Matrix rate and when considering her experience, Ms. Christopherson’s hourly rate of \$500.00 is reasonable.” (Moon Decl., ¶ 69.)

The Court finds this request reasonable and in line with other PAGA attorney fee requests. “[W]hen an attorney fee is awarded out of a common fund preserved or recovered by means of litigation [citation], the award is not per se unreasonable merely because it is calculated as a percentage of the common fund.” (See *Laffitte v. Robert Half International Inc.* (2016) 1 Cal.5th 480, 486.) As for litigation costs, Moon attests that “[i]n the event the amounts finally approved are less, the difference will revert to Participating Class Members... To date, my firm has incurred \$27,808.74 in actual litigation costs.” (Moon Decl., ¶ 16; Ex. 4.) Given the agreement’s language of “not to exceed \$35,000...” (see Ex. 1, Settlement Agreement, § 3.1.2) and the explanation that the excess cost allowance reverts to the class members, the Court finds this proper. Plaintiff will also receive “not more than \$10,000.00, in addition to the Individual Class Payment and Individual PAGA Payment the Class Representative is entitled to receive as a Participating Class Member and Aggrieved Employee.” (Ex. 1, Settlement Agreement, § 3.1.1.)

Moon explains that “[t]his award is for her services in support of the Action and General Release.” (Moon Decl., ¶ 15.) Plaintiff also attests that she “believe[s] this award is fair compensation to me for initiating and helping to prosecute this case, for my effort and time on this case, and for the substantial risks I undertook with respect to agreeing to be the named Plaintiff in this case, including the negative impact this role may have on my future employability. I

estimate that to date I have spent roughly 30 hours working on this case, and I expect that I will continue to put in additional hours of my own time for settlement approval, including during the class notice process, to prepare for final settlement approval, to monitor the status of funding and disbursement following any entry of final approval, and to answer any questions that other class members might have.” (Manzanares Decl., ¶ 22.) The Court finds that authorizing payment to Plaintiff, as the class representative, is reasonable.

To the LWDA and Aggrieved Employees, the parties allocated \$50,000 for PAGA penalties to be paid to the LWDA and Aggrieved Employees in the amount of 75% (\$37,500) and 25% (\$12,500),^[1] respectively. (Ex. 1, Settlement Agreement, § 3.1.4.) To calculate how much each aggrieved employee will receive, the Administrator will “(a) divid[e] the amount of the Aggrieved Employees’ 25% share of PAGA Penalties by the total number of PAGA Pay Periods worked by all Aggrieved Employees during the PAGA Period and (b) multiply[] the result by each Aggrieved Employee’s PAGA Pay Periods.” (Id., at § 3.1.4.1.) “‘Aggrieved Employees’ or ‘PAGA Group’ means all current and former hourly-paid or non exempt employees of Defendant in California employed during the PAGA Period.” (Id., at § 1.3.) The “‘Class Period’ means the period July 10, 2022, through the date of preliminary approval of the Settlement, except as otherwise provided in Paragraph 7.0.” (Id., at § 1.12.) “This results in an average Individual PAGA Payment of roughly \$26.37 for each of the estimated 474 Aggrieved Employees ($\$12,500 / 474$), and a PAGA Pay Period value of roughly \$0.97 for each of the 12,953 estimated Pay Periods in the PAGA Period ($\$12,500 / 12,953$.” (Moon Decl., ¶ 19.)

The settlement agreement also includes a net settlement amount of no less than \$395,000, which “results in an average Individual Class Payment of roughly \$833.33 for each of the estimated 474 Class Members ($\$395,000 / 474$), and a Workweek value of roughly \$15.19 for each of the 26,000 estimated Workweeks in the Class Period ($\$395,000 / 26,000$.” (Moon Decl., ¶ 22.)

The settlement contains an escalation clause, provided in section 7.0, which states that “Defendant represents that there are approximately twenty-six thousand (26,000) Workweeks during the period from July 10, 2022, through October 14, 2025. Should the number of Workweeks increase by more than Ten percent (10%) greater than this figure during the Class Period, Defendant shall increase the Gross Settlement Amount by the percentage increase above ten percent (10%) (e.g. if the number of Workweeks increases by 11%, the Gross Settlement Amount will increase by 1%). In the alternative, Defendant in its

sole discretion may elect to shorten the Class and PAGA period in order to stay within the ten percent (10%) cushion.” (Ex. 1, Settlement Agreement, § 7.0.)

The settlement provides for a payment to the Administrator, Phoenix Class Action Administration Solutions (“Phoenix”), for settlement administration expenses “of not more than \$10,000.00, except for a showing of good cause and as approved by the Court.” (Ex. 1, Settlement Agreement, § 3.1.3.) Given that the settlement agreement contains language stating, “not more than,” the Court finds this reasonable.

The settlement is properly non-reversionary. (Ex. 1, Settlement Agreement, § 4.1.3 [“For any Class Member whose Individual Class Payment check or Individual PAGA Payment check is uncashed and cancelled after the void date, or for any Class Member whose envelope is returned and no forwarding address can be located for the Class Member after reasonable efforts have been made, the Administrator shall transmit the funds represented by such checks to the California Controller's Unclaimed Property Fund in the name of the Class Member.”].) Additionally, “[e]ffective on the date Defendant fully funds the entire Gross Settlement Amount and all employer payroll taxes owed on the Wage Portions of the Individual Class Payments, Plaintiff, Participating Class Members, Aggrieved Employees, and the LWDA State of California will release claims against all Released Parties.” (Ex. 1, Settlement Agreement, § 5.)

The parties also expressly consent to the Court's jurisdiction, stating that “[a]fter entry of the Final Judgment, the Court will retain jurisdiction over the Parties, Action, and Settlement solely for purposes of (i) enforcing the Agreement and/or Judgment, (ii) addressing settlement administration matters, and (iii) addressing such post-Judgment matters as are permitted by law, pursuant to CCP section 664.6 and California Rules of Court rule 3.769(h).” (Ex. 1, Settlement Agreement, § 10.3.)

The Court finds that the \$750,000.00 settlement is fair and reasonable in light of the above and because “the Settlement at issue was reached through arms'-length negotiations, private mediation, and the assistance of a statistics expert. Based on Defendant's informal class-wide discovery production, on Plaintiff's Counsel independent investigation and evaluation, and on their extensive experience in wage-and-hour litigation, Plaintiff's Counsel are of the opinion that the proposed Settlement is fair, reasonable, and adequate. Furthermore, considering all known facts and circumstances, the risk of significant delay, trial risk, appellate risk, and the defenses

Defendant may assert both to certification and on the merits, the Settlement is in the best interest of the Class and LWDA.” (Moon Decl., ¶ 32; see Kullar v. Foot Locker Retail, Inc., supra, 168 Cal.App.4th at p. 130 [“The most important factor is the strength of the case for plaintiffs on the merits, balanced against the amount offered in settlement.”].)

Accordingly, the Court grants preliminary approval of the Joint Stipulation of Class and Representative Action Settlement Agreement.

B.
Class
Certification

Plaintiff contends that “[t]he proposed Settlement Class is well suited for class certification. The claims all derive from a core set of alleged violations of California’s wage and hour laws and regulations. (Moon Decl., ¶¶ 4–5.) For the reasons set forth more fully below, the Class, for purposes of Settlement, satisfies the prerequisites for certification under Code of Civil Procedure section 382.” (Mot., 16:16-19.)

Code
of Civil Procedure section 382 is the foundational legal statute authorizing class actions. The statute “authorizes a class action ‘when the question is one of a common or general interest, of many persons, or when the parties are numerous, and it is impracticable to bring them all before the court.’ This language is the basis for specific requirements the Supreme Court has identified for class certification.” (Martinez v. Sierra Lifestar, Inc. (2026) 119 Cal.App.5th 1303, 1314, citing Code Civ. Proc., § 382.) “The moving party must demonstrate the existence of [1] an ascertainable and [2] sufficiently numerous class, [3] a well-defined community of interest, and [4] substantial benefits from certification that render proceeding as a class superior to the alternatives. [Citations.] In turn, community of interest is comprised of three factors: (1) predominant common questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the class. When these three factors are substituted into the list of what a moving party must demonstrate, there are a total of six criteria for class certification: (1)

ascertainability, (2) numerosity, (3) predominance of common questions, (4) typicality, (5) adequacy of representation, and (6) superiority.” (Id. at pp. 1314-1315, internal quotations and citations omitted.)

a. Ascertainability

“[A] class [i]s ascertainable when it is defined ‘in terms of objective characteristics and common transactional facts’ that make ‘the ultimate identification of class members possible when that identification becomes necessary.’ [Citation.] We regard this standard as including class definitions that are ‘sufficient to allow a member of [the class] to identify himself or herself as having a right to recover based on the [class] description.’ [Citation.]” (Noel v. Thrifty Payless, Inc. (2019) 7 Cal.5th 955, 980.)

“Here, Plaintiff maintains there is an easily ascertainable Class, defined by objective and precise criteria. (Settlement, ¶¶ 1.4, 1.12.) The proposed Class that Plaintiff seeks to represent is ascertainable because (1) the Class definition is sufficiently precise, (2) the Class consists of about 474 individuals, and (3) Class Members can be readily identified by Defendant’s records. (Id. at ¶¶ 1.4, 1.12.) Because Class Members are identified using specific criteria in the regular business records of Defendant—their employment by Defendant in California, non-exempt classification, hourly wage, and actual work during the Class Period—the Class is ascertainable.” (Mot., 17:13-20.)

As noted in the previous section, the class is limited to a set and defined time period. Specifically, the settlement defines “‘Class Period’ [a]s the period July 10, 2022, through the date of preliminary approval of the Settlement, except as otherwise provided in Paragraph 7.0.” (Ex. 1, Settlement Agreement, § 1.12.) Whereas “‘Class’ or ‘Settlement Class’ or ‘Settlement Class Member(s)’ means all current and former hourly-paid or non-exempt employees of Defendant in California employed during the Class Period.” (Id., at § 1.4.) Accordingly, the Court finds that the class is reasonably ascertainable because Plaintiff provides a limited timeline and includes only individuals who worked for Defendant.

b. Numerosity

Numerosity flows directly from Code of Civil Procedure section 382, which states that “when the parties are numerous, and it is impracticable to bring

them all before the court.” “[I]mpracticality does not mean impossibility, but only the difficulty or inconvenience of joining all members of the class. [Citation.] The numerosity requirement requires examination of the specific facts of each case and imposes no absolute limitations. In addition to the size of the class, the court may also consider the nature of the action, the size of the individual claims, the inconvenience of trying individual suits, and any other factor relevant to the practicability of joining all the putative class members.” (Hendershot v. Ready to Roll

Transportation, Inc. (2014) 228

Cal.App.4th 1213, 1222, internal citations and quotations omitted.)

“The requirement of Code of Civil Procedure section 382 that there be ‘many’ parties to a class action suit is indefinite and has been construed liberally.”

(Rose v. City of Hayward (1981) 126 Cal.App.3d 926, 934 overruled in part on separate grounds by Noel v. Thrifty Payless, Inc., supra, 7 Cal.5th 955.)

Plaintiff contends that “numerosity is plainly satisfied.” (Mot., 18:2.)

The class is estimated to be 474 individuals. (Moon Decl., ¶ 20.) Bringing all 474 individuals to Court would be impracticable and inconvenient. Additionally, PAGA cases generally include a group of individuals and are well-suited for class certification. Accordingly, numerosity is met.

c.

Community of Interest

“‘[C]ommunity

of interest’ turns on whether common questions of law and fact are sufficiently pervasive to permit adjudication in a class action rather than in a multiplicity of suits.” (Miller v. Woods (1983) 148 Cal.App.3d 862, 873-874 overruled in part on separate grounds by Noel v. Thrifty Payless, Inc., supra, 7 Cal.5th 955.) “The community of interest requirement involves three factors: (1) predominant common questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the class.” (Noel v. Thrifty Payless, Inc., supra, at p. 968, internal quotations and citation omitted.)

i. Predominance of
Common Questions

“Regarding the first of these factors, [the

California Supreme Court] ha[s] recognized [a]s a general rule that if the defendant's liability can be determined by facts common to all members of the class, a class will be certified even if the members must individually prove their damages." (Noel v. Thrifty Payless, Inc., supra, 7 Cal.5th at p. 968.)

Plaintiff

contends that "[t]he employment practices at issue include whether Defendant: paid employees all minimum, and overtime pay wages owed; reimbursed employees for necessary business expenses; provided employees with and authorize meal and rest periods or paid premiums for non-compliant breaks; paid all final wages to employees at the time of termination; intentionally failed to pay all final wages; provided inaccurate itemized wage statements and whether Class Members were harmed; engaged in unfair business practices; and violated civil penalty provisions under PAGA. (Moon Decl., ¶¶ 4–5.) Plaintiff contends the factual and legal issues are the same for all Class Members, and further that all Class Members suffered from and seek redress for the same alleged injuries. (Plaintiff Decl., ¶¶ 5–6.) Considering Class Members would need to prove the same issues of law and fact to prevail, and their legal remedies are identical, it would be preferable to resolve all claims through a settlement than to force each Class Member to litigate their own individual claims." (Mot., 18:10-21.)

The Court finds that common questions of law and fact are predominant in the class. All proposed class members worked in the same place and suffered the same wage and employment violations. Thus, the predominance element is satisfied.

ii. Typicality

The purpose of the typicality requirement "is to ensure the interest of the named representative aligns with the interests of the class. Typicality refers to the nature of the claim or defense of the class representative, and not to the specific facts from which it arose or the relief sought. [Citations.] The test of typicality is whether other members have the same or similar injury, whether the action is based on conduct which is not unique to the named plaintiffs, and whether other class members have been injured by the same course of conduct." (Martinez v. Sierra Lifestar, Inc., supra, 119 Cal.App.5th at p. 1316, internal quotations and citations omitted.)

Plaintiff asserts that "[a] representative

plaintiff's claims are typical of the class if they arise from the same event, practice, or course of conduct, and if the claims rest on the same legal theories. [Citation.] That is precisely the case here. Plaintiff is a former employee of Defendant and alleges she was subject to the same policies and practices as other similarly situated employees." (Mot., 19:2-5.)

As Plaintiff contends, her causes of action and claims against Defendant are typical of the class because the issues she complains about arise from the same Defendant, the same circumstances, with the same damages. Accordingly, typicality is satisfied.

iii. Adequacy of Representation

"Adequacy of representation depends on whether the plaintiff's attorney is qualified to conduct the proposed litigation and the plaintiff's interests are not antagonistic to the interests of the class." (McGhee v. Bank of America (1976) 60 Cal.App.3d 442, 450.)

Plaintiff contends that the "requirements are met. Plaintiff retained counsel with extensive experience in prosecuting complex class actions, including similar class actions that previously settled. (Moon Decl., ¶¶ 51–71.) Based on their experience, Plaintiff's Counsel unquestionably are "qualified, experienced and generally able to conduct the proposed litigation." (Miller, supra, 148 Cal.App.3d at p. 874.) Plaintiff has, with counsel, litigated this case and diligently reviewed the settlement terms, showing dedication, and with full knowledge and acceptance of duties, she has committed to her role as Class Representative. (Plaintiff Decl., ¶¶ 11–21.) In addition, Plaintiff and her Counsel have no conflicts with one another, other Class Members, or the proposed Administrator." (Mot., 19:12-19.)

As Plaintiff's counsel explains in his declaration, his "office is qualified to handle this litigation because we are experienced in litigating Labor Code and Wage Order violations in individual, class, and representative actions. The attorneys at my office have been appointed as lead or co-lead counsel in numerous wage-and-hour class and/or PAGA actions in state and federal courts by way of motion for settlement approval. Including myself, Moon Law Group, PC is comprised of approximately 35 attorneys, all of whom are actively and continuously practicing employment litigation, representing almost entirely employee-plaintiffs, in both individual and class and/or PAGA actions, in this Superior Court and other Superior Courts throughout the State, in the Courts of Appeal, and in various federal courts. The attorneys at my firm have

a high level of skill and knowledge in wage-and-hour class actions, PAGA representative actions, and labor and employment law generally, the substantive [sic] (state and federal) and procedural law of which is frequently evolving.” (Moon Decl., ¶ 70.) Thus, counsel appears well-suited to litigate this case.

As for Plaintiff, she submits a declaration attesting that she “was employed by Defendant in California in an hourly paid, non-exempt position during the proposed Class Period and was subject to the same pay structure and rules as all the other non-exempt employees of Defendant. Accordingly, I have brought this class action case on behalf of all other employees who are also or were at some point classified as non-exempt during their employment with Defendant. I believe my alleged claims in this case impacted not only me but the entire Class.” (Manzanares Decl., ¶ 7.) Additionally, she attests that “I do not believe I have any conflicts of interest with other Class Members and have agreed to place Class interests above my own. I do not intend to take any action that would place me in a position that is hostile to other Class Members.” (Id., at ¶ 9.) According to Plaintiff’s declaration, signed under penalty of perjury, Plaintiff’s interests align with the class, and she demonstrates she is an adequate representative.

d. Superiority

Lastly, “the superiority criterion is manifest in the determination that a class action brought under Code of Civil Procedure section 382 would produce ‘substantial benefits’ to the litigants and the judicial system.” (Schneider v. Vennard (1986) 183 Cal.App.3d 1340, 1347.) “One of the factors to be considered in determining whether a class action is superior to other available methods is the extent and nature of other litigation already commenced by members of the class.” (Ibid.)

Plaintiff asserts that “[b]y consolidating many potential individual actions into a single proceeding, this Court’s use of the class action device enables it to manage this litigation in a manner that serves the economics of time, effort, and expense for the litigants and the judicial system. [Citation.] Absent class treatment, similarly situated employees with small, but nevertheless meritorious, claims for damages would, as a practical matter, have no means of redress because of the time, effort, and expense required to prosecute individual actions.” (Mot., 19:24-20:1.)

The Court finds that the superiority element is met. Consolidating the various actions that could be brought against Defendant into one proceeding promotes judicial efficiency and allows all class members to obtain recourse for what otherwise may be small claims not worth the costs of litigation.

In light of the foregoing, the Court certifies the class, for settlement purposes only.

C. Class Notice

“The class proponent must submit a statement regarding class notice and a proposed notice to class members. The statement must include the following items:

- (1) Whether notice is necessary;
- (2) Whether class members may exclude themselves from the action;
- (3) The time and manner in which notice should be given;
- (4) A proposal for which parties should bear the costs of notice; and,
- (5) If cost shifting or sharing is proposed under subdivision (4), an estimate of the cost involved in giving notice.”

(Cal. Rules of Court, rule 3.766(b).) “The content of the class notice is subject to court approval. If class members are to be given the right to request exclusion from the class, the notice must include the following:

- (1) A brief explanation of the case, including the basic contentions or denials of the parties;
- (2) A statement that the court will exclude the member from the class if the member so requests by a specified date;
- (3) A procedure for the member to follow in requesting exclusion from the class;

(4) A statement that the judgment, whether favorable or not, will bind all members who do not request exclusion; and

(5) A statement that any member who does not request exclusion may, if the member so desires, enter an appearance through counsel.”

(Cal. Rules of Court, rule 3.766(d).) In determining the manner of the notice, the court must consider (1) the class's interests; (2) the relief requested; (3) the stake of the individual class members; (4) the cost to notify class members; (5) the resources of the parties; (6) possible prejudice to class members who do not receive notice; and (7) the effect of res judicata on class members. (Cal. Rules of Court, rule 3.766(e).)

Plaintiff contends that “the proposed Class Notice, in the form attached to the Settlement as Exhibit A, meets all the requirements of California Rules of Court. The Notice summarizes the proceedings to date and the terms and conditions of the proposed Settlement in an informative and coherent manner. (Settlement, ¶ 6.3, Ex. A.) It also states that the final approval decision has yet to be made, and provides the date, time, and location of the Final Approval Hearing. (Id.) It explains the right and procedures to opt-out or submit any written objections and/or arrange to appear at the Final Approval Hearing and verbally state any objections. (Settlement, ¶ 6.12.1.) It makes clear the Settlement does not constitute an admission of liability by Defendant, who denies all liability, and it recognizes that this Court has not ruled on the merits of the action. (Settlement, Exh. A.).” (Mot., 20:7-16.)

Plaintiff's counsel's declaration also explains that “[t]he Class Notice will be mailed via first-class U.S. mail in English and Spanish to the current address of each Class Member. (Id. at ¶ 6.3.) The proposed Class Notice sets forth, in plain terms, a statement of case, the terms of the Settlement, the approximate amounts of attorneys' fees, costs, PAGA Penalties, and service award being sought, an explanation of how the individual payments are calculated, the Final Approval Hearing information, the procedure for disputing the number of Workweeks and/or Pay Periods credited to each Class Members, and how Class Members may, should they choose, opt-out or otherwise object to the Settlement. (Id. at ¶¶ 6.3–6.5, Ex. A.).” (Moon Decl., ¶ 30.)

The

Court reviewed the class notice and finds that it adequately complies with California Rules of Court, rule 3.766. Additionally, the notice will be sent “[n]o later than fourteen (14) calendar days after receiving the Class Data from Defendant, the Administrator will send all Class Members identified in the Class Data, via first-class United States Postal Service (‘USPS’) mail, the Class Notice in English and Spanish.” (Ex. 1, Settlement Agreement, § 6.3.) Additionally, “[b]efore mailing the Class Notices, the Administrator shall update Class Member addresses using the National Change of Address database.” (Ibid.) The Court finds that this reasonably notifies the proposed class members because the addresses on file will be current and, by providing the notice in two different languages, it is more accessible. Additionally, if a notice is undelivered, “the Administrator shall re-mail the Class Notice using any forwarding address provided by USPS. If USPS does not provide a forwarding address, the Administrator shall conduct a Class Member Address Search and re-mail the Class Notice to the most current address obtained.” (Id., at § 6.4.) This takes additional steps to ensure potential class members receive proper notice. As Plaintiff’s motion points out, “[t]here is no statutory or due process requirement that all class members receive actual notice, but in this matter, Class Members will receive direct mailed notice, which is the best possible form of notice under the circumstances.” (Mot., 20:23-25.) The Court finds that mailing the notice is reasonable here.

Based

on the foregoing, the proposed class notice is adequate.

D. Appointments

Plaintiff’s motion also

seeks appointment of her as the class representative, Moon Law Group, PC as class counsel, and Phoenix Class Action Administration Solutions (“Phoenix”) as the Administrator.

As for appointing Plaintiff

and Moon Law Group, PC as the class representative and class counsel, the Court finds this reasonable. As discussed in the class certification section, *supra*, Plaintiff is aligned with the interests of the class and has the same claims as the class. Moon Law Group deals with employment issues, PAGA suits, and class actions, which makes them well-versed in this subject matter and well-suited to oversee the settlement and class.

As for the appointment of

Phoenix as the Administrator, the Court notes that Plaintiff and Defendant “jointly selected Phoenix to serve as the Administrator and verified that, as a condition of appointment, Phoenix agrees to be bound by this Agreement and to perform, as a fiduciary, all duties specified in this Agreement in exchange for the Administration Expenses Payment. The Parties and their Counsel represent that they have no interest or relationship, financial or otherwise, with the Administrator other than a professional relationship arising out of prior experiences administering settlements.” (Ex. 1, Settlement Agreement, § 6.0.) Plaintiff also includes a declaration from Phoenix’s President of Business Development, Jodey Lawrence, in support. (See Lawrence Decl., ¶ 2.) Lawrence attests that “Phoenix has never had any financial interest in, nor any affiliation with, the Parties or their counsel in the matter of Manzanares v. Brentwood School. Phoenix also has no actual or potential conflicts of interest with the Class.” (Lawrence Decl., ¶ 4.) Moreover, Lawrence explains that “Phoenix has extensive experience administering class action matters and has been appointed as the administrator in matters pending in both State and Federal courts. Phoenix has administered complex wage-and-hour, labor and employment, consumer/product liability, TCPA, FLSA, FACTA, ERISA, PAGA, and class action matters through final approval and distribution. Phoenix has developed a robust system of quality assurance measures to ensure that the highest quality service is provided.” (Lawrence Decl., ¶ 6.) Phoenix further outlines the procedures it has in place to protect funds and data, how it prepares the notices, and how it determines the costs of administering the settlement. (See generally, Lawrence Decl.) Based on the foregoing, the Court finds that appointing Phoenix as Administrator is reasonable, given the parties’ agreement and Phoenix’s declaration in support.

Conclusion

Based

on the foregoing, Plaintiff’s motion for preliminary approval of the Joint Stipulation of Class and Representative Action Settlement Agreement is GRANTED. Specifically, for settlement purposes only, the Court certifies a class; the Court approves the class notice and plan for its distribution; the Court appoints Plaintiff as the class representative; the Court appoints Moon Law Group, PC as class counsel; and the Court appoints Phoenix Class Action Administration Solutions as the Administrator.

A

final approval hearing is set for no earlier than 120 days from the date of this Order, on _____, 2027 at 10:00 a.m. in Department 508.

Plaintiff

is ordered to give notice of this Order.

DATED: September 8, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court

[1] Plaintiffs' notice was filed on June 24, 2023, and pursuant to LWDA's website, "[f]or PAGA notices filed before June 19, 2024: 75% of the recovered penalties go to LWDA and 25% go to the aggrieved employees." (Private Attorneys General Act (PAGA) Frequently Asked Questions, California Labor and Workforce Development Agency <<https://www.labor.ca.gov/resources/paga/paga-faqs/>> [as of July 16, 2026]; see also Lab. Code, § 2699, subd. (m).)